

RESTATED ARTICLES OF INCORPORATION
OF
AUTUMN WOODS HOMEOWNERS ASSOCIATION, INC.

PARISH FILE #
80-017693

The AUTUMN WOODS HOMEOWNERS ASSOCIATION, INC., a Louisiana Non-Profit Corporation organized on a non-stock basis (the "Corporation"), through its undersigned President and Assistant Secretary, and by authority of its Board of Directors, does hereby certify that:

FIRST: The restated Articles of Incorporation set forth in paragraph fifth below accurately copies the Articles and all amendments thereto in effect at the date hereof without any substantive changes except as made by the new amendments and the deletions described in paragraph fourth below.

SECOND: Each amendment has been effected in conformity with law.

THIRD: The date of incorporation of the Corporation was June 6, 1980, and the date of these Restated Articles is August 18, 1980.

FOURTH: On August 15, 1980, at a meeting at which all of the members entitled to vote were represented, by a unanimous vote of the membership, the members adopted resolutions changing the Articles of incorporation as in effect prior to the date hereof by amending Articles II, IV and VI to read as set forth below:

FIFTH: The restated Articles of Incorporation are as follows:

ARTICLE I.

The naem of this corporation shall be and is The Autumn Woods Homeowners Association, Inc.

ARTICLE II

The registered office and post office address of this corporation is 110 W. Bayou Parkway, Lafayette, LA 70502

ARTICLE III.

The name and post office address of the registered agents are:

J. EUSTIS CORRIGAN
110 W. Bayou Parkway
Lafayette, LA 70502

D. REX ENGLISH
Suite 1400
666 Jefferson Street
Lafayette, Louisiana 70502

ARTICLE IV.

The Autumn Woods Homeowners Association, Inc., is a non-profit corporation and the Association does not contemplate pecuniary gain or profit to the members thereof, and the specific purposes for which it is formed are to provide for maintenance, preservation and architectural control of the condominium units and common area within that certain tract or property known as Autumn Woods Townhouses, a Condominium, and described as:

A 2.105 acre tract or parcel of land together with all improvements thereon, known as Autumn Woods Townhouses, situated in the City of Lafayette, Lafayette Parish, Louisiana, and being more particularly described as follows: beginning at a point on the Southwesterly right of way of West Bayou Parkway, said point being 241.6 feet Southeasterly along said right of way from the intersection of said right of way with the southerly right of way of South College Road; thence with said Southwesterly right of way of West Bayou Parkway S 19 degrees 49' 20" E 80.00 feet, S 34 degrees 42' 08" E 88.09 feet S 47 degrees 02' 39" E 67.80 feet, S 52 degrees 53' 28" E 91.62 feet to a point for corner; thence S 37 degrees 54' 32" W 213.26 feet to a point for corner; thence N 52 degrees 05' 28" W 394.01 feet to a point for corner; thence N 38 degrees 12' 31" E 216.58 feet, N 67 degrees 06' 56" E 25.15 feet, S 52 degrees 14' 50" E 39.22 feet and N 70 degrees 10' 40" E 57.18 feet to the point of beginning and containing 2.105 acres more or less, all as shown on a plat of survey prepared by Ricard C. Spikes, registered Land Surveyor, dated May 1, 1980.

and to promote the health, safety and welfare of the resident within the above described property and any additions thereto as may hereafter be brought within the jurisdiction of this association for this purpose to:

(a) exercise all of the powers and privileges and to perform all of the duties and obligations of the Association as set forth in that certain Condominium Declaration- Autumn Woods Townhouses, a condominium, hereinafter called the "Declaration," applicable to the property

and recorded or to be recorded in the office of the Clerk of Court for the Parish of Lafayette, Louisiana, and as the same may be amended from time to time as therein provided; said Declaration being incorporated herein as if set forth at length;

here } (b) fix, levy, collect and enforce payment by any lawful means, all charges or assessments pursuant to the terms of the Declaration; to pay all expenses in connection therewith and all office and other expenses incident to the conduct of the business of the Association, including all licenses, taxes or governmental charges levied or imposed against the property of the Association;

(c) acquired (by gift, purchase or otherwise), own, hold, improve, build upon, operate, maintain, convey, sell, lease, transfer, dedicate for public use or otherwise dispose of real or personal property in connection with the affairs of the Association;

2 (d) borrow money and with the assent of two-thirds (2/3) of each class of member mortgage, pledge, deed in trust, 1 or hypothecate any or all of its real or personal property as security for money borrowed or debts incurred;

(e) dedicate, sell or transfer all or any part of the common area to any public agency, authority or utility for such purposes and subject to such conditions as may be agreed to by the members. No such dedication

or transfer shall be effective unless an instrument has been signed by two-thirds (2/3) of each class of members, agreeing to such dedication, sale or transfer;

(f) participate in mergers and consolidation with other nonprofit corporations organized for the same purposes or annex additional residential property and common area, provided that any such merger, consolidation or annexation shall have the assent of two-thirds (2/3) of each class of members;

(g) to engage in any lawful activity for which corporations may be formed under the above referred to laws.

ARTICLE V.

Every person or entity which is a record owner of a fee or undivided fee interest in condominium unit which is subject by covenants of record to assessment by the Association, including contract sellers, shall be a member of the Association. The foregoing is not intended to include persons or entities who hold an interest merely as security for the performance of an obligation. Membership shall be appurtenant to and may not be separated from ownership of any lot which is subject to assessment by the Association.

ARTICLE VI.

This corporation is organized and shall operate on a non-stock basis. The membership shall consist of all owners of condominium units of Autumn Woods Townhouses. Each condominium unit owner shall be entitled to one vote for each condominium unit owned. When more than one person holds an interest in any condominium unit, all such person shall be members. The vote for such condominium unit shall be exercised as they determine, but in no event shall more than one vote be cast with respect to any condominium unit.

ARTICLE VII.

2 The affairs of the corporation shall be managed by a Board of not less than three nor more than nine (9) directors, who need not be members of the Association. The number of directors may be changed by amendment of the By-Laws of the Association. The names and the addresses of the corporation's first directors is set forth herein below and their term of office shall expire on the 1st day of June, 1982.

- ## ARTICLE VIII.

ARTICLE IX.

ARTICLE X.

ARTICLE XI.

AUTUMN WOODS HOMEOWNERS ASSOCIATION, INC.

BY: ~~D. J. [illegible]~~
~~D. J. ENGLISH, ASSISTANT SECRETARY~~

1980
 August
 1980

ACKNOWLEDGMENT

STATE OF LOUISIANA
PARISH OF LAFAYETTE

BEFORE ME, the undersigned authority, personally came and appeared J. EUSTIS CORRIGAN and D. REX ENGLISH, to me known to be the President and Assistant Secretary, respectively, of AUTUMN WOODS HOMEOWNERS ASSOCIATION, INC., and the persons who executed the foregoing instrument in such capacities, and who, being duly sworn, acknowledged in my presence and in the presence of the undersigned witnesses that they were authorized to and did execute the foregoing instrument in such capacities for the said corporation, as its and their free act and deed.

IN WITNESS WHEREOF, the appearers and witnesses, and I have hereunto affixed our signatures on this 18th day of August, 1980.

WITNESSES:

[Signature]

J. EUSTIS CORRIGAN
[Signature]
D. REX ENGLISH

[Signature]
NOTARY PUBLIC

A TRUE COPY ATTEST
Lafayette, La. 15-18-80
[Signature]
DY. CLERK OF COURT

A TRUE COPY
of an Original Act passed before me
on this 18 day of August
1980
[Signature]

CONDOMINIUM DECLARATION
AUTUMN WOODS TOWNHOUSES, A CONDOMINIUM

STATE OF LOUISIANA

PARISH OF LAFAYETTE

On this 18 day of August, 1980, before me, the undersigned authority, personally came and appeared:

KECO-AUTUMN WOODS VENTURE, a Joint Venture formed pursuant to a Joint Venture Agreement recorded in the records of Lafayette Parish, Louisiana, under Entry No. 80-14148, represented herein by J. Eustis Corrigan, individually, and on behalf of Burt H. Keenan, pursuant to a power of attorney recorded under Entry No. 80-017535 of the records of Lafayette Parish, Louisiana,

who declared that the Joint Venture does hereby avail itself of the provisions of the Louisiana Condominium Act (Louisiana Revised Statutes, Title 9, Sections 1121.101 through 1148) and does hereby establish this Declaration of Condominium pursuant to said provisions as follows:

I.

There is hereby created Autumn Woods Townhouses, a condominium, (hereinafter referred to as "Autumn Woods Townhouses", on the property owned by KECO-AUTUMN WOODS VENTURE, and fully described as follows:

SEE ATTACHMENT "A".

II.

Unless it is plainly evident from the context that a different meaning is intended, the following terms shall have the meanings ascribed as follows:

A - As used herein, the following terms shall have the meanings ascribed to them in accordance with L.R.S. 9:1121.103, namely:

(1) "Condominium" is the property regime under which portions of the immovable property are subject to individual ownership and the remainder thereof is owned in indivision by such individual owners.

(2) "Condominium property" means all interest in land, improvements thereon, and all servitudes and rights subjected to the condominium.

(3) "Unit" means a part of the condominium property subject to individual ownership. Except as stated below, a unit includes air space only. A unit includes such accessory rights and obligations as are stipulated in the condominium declaration.

(4) "Unit designation" means the number, letter or combination thereof or any other official designation identifying a particular unit in the condominium declaration.

(5) "Common elements" means the portion of the condominium property not a part of the individual units. In every multi-unit building, the following shall be common elements:

(a) Foundations, main walls, roofs and all principal structural parts of the building;

(6) "Condominium parcel" means a unit together with the undivided interest in the common elements which is an inseparable component part of the unit.

(7) "Association of unit owners" or "association" means a corporation, trust, unincorporated association, partnership, or other legal entity, owned by or composed of the unit owners and through which the unit owners manage and regulate the condominium.

(8) "Common expenses" means:

(a) Expenses of administration, maintenance, repair or replacement of the common elements;

(b) Expenses declared to be common expenses by provisions of this part or by the condominium declaration or bylaws;

(c) Expenses agreed upon as common expenses by the unit owners.

(9) "Condominium declaration" means the instrument by which immovable property is made subject to this part.

B - The following definitions are provided to supplement L.R.S. 9:1121.103, namely:

(1) "Declaration", means Condominium declaration.

(2) "Autumn Woods Townhouses" means Autumn Woods Townhouses, a Condominium.

(3) "Common elements" also means all items set forth in paragraph III of this Condominium Declaration.

(4) "Association of Unit Owners" or Association" also means Autumn Woods Homeowners Association, Inc., a non-profit Louisiana corporation domiciled in the Parish of Lafayette, owned by and composed of unit owners through which the unit owners manage and regulate Autumn Woods Townhouses, a Condominium.

- 7
- (5) "Common Expenses" shall also include monies to be assessed from the unit owners to establish and maintain reserves to provide for maintenance, improvements, replacements, working capital, bad debts, obsolescence and other appropriate purposes.
- (7) "Owner" means a person owning one or more units, or a fractional interest in a unit in Autumn Woods Townhouses, a condominium, said ownership being evidenced by an act translatve of title and duly recorded in the Conveyance Records of the Parish of Lafayette, Louisiana.
- (8) "Master Deed," if used herein means "Condominium Declaration".
- (9) "General Common Element" if used herein means "Common Element".

III.

In addition to the provision of L.R.S. 9:1121.103(5), "Common elements" shall include:

- (a) The land on which the buildings stand.
- (b) The foundation, main walls, the roofs and the common entrance walkway providing access to the individual entrances to each particular building.
- (c) All those elements so classified by the Louisiana Condominium Act, and not herein sepcifically reserved for the use of a certain unit or of certain units.

IV.

There are in existence thirty-four (34) units, situated in Eight (8) structures and all of the above described property is hereby resubdivided into units Number 101 through 104, 201 through 202, 301 through 304, 401 through 406, 501 through 502, 601 through 606, 701 through 704, and 801 through 806, inclusive, and the common elements are shown on the plans of said subdivision entitled Autumn Woods Townhouses, a Condominium, dated May 1, 1980, and revised August 14, 1980, prepared by Richard C. Spikes which is attached hereto as Exhibit "A" and made a part hereof.

V.

Each unit includes the doors, windows and interior walls and all finish materials attached to the interior face of the main walls servicing that unit alone, together with individual balconies and

patios attach directly to and servicing the particular unit.

VI.

The title and interest of each unit owner in and to the common elements, his proportionate share in the common surplus and his proportionate share in the responsibility for payment of common expenses, as well as his proportionate representation for voting purposes in the meetings of the association of unit owners of Autumn Woods Townhouses is based upon a one thirty-fourth, (1/34) undivided interest per unit owned by each unit owner.

VII.

The common elements shall remain undivided and no owner shall bring any action of partition or division thereof.

VIII.

The percentage of the undivided interest in the common elements established herein shall not be changed except with the unanimous consent of all of the owners expressed in an amendment to this declaration of condominium, duly recorded.

IX.

The undivided interest in the common and limited common elements shall not be separated from the unit to which it appertains and shall be deemed conveyed or encumbered with the unit even though such interest is not expressly mentioned or described in the conveyance or other instrument.

X.

The common expenses of repairs, maintenance and replacement of common elements shall be paid by the association which shall collect said common expenses from all owners of units by assessment in the proportion set forth in Paragraph VI of this declaration.

10-5? **All decision regarding repairs, maintenance and replacement of common elements shall be made by the association.**

The association is hereby charged with the responsibility and duty of making prudent decisions in connection herewith.

XI.

Each unit owner shall be personally responsible and legally liable for sums assessed him by the association of unit owners in connection with common expenses. The said association shall have the right and duty to enforce the financial responsibility of all unit owners in connection herewith. A unit owner shall not exempt or relieve himself from the responsibility of contribution

toward expenses assessed him by the association, waiver of the use of common elements, nor by abandonment of the unit belonging to him.

XIV.

There shall be a lien for common expenses in accordance with L.R.S. 9:1123.115, said statute providing as follows:

- (a) The association shall have a privilege on a condominium parcel for all unpaid sums assessed by the association and interest thereon at the rate provided in the condominium declaration, or in the absence thereof, at the legal interest rate. If authorized by the condominium declaration, this privilege shall so secure reasonable attorney fees incurred by the association incident to the collection of the assessment or enforcement of the privilege. To be preserved the privilege shall be evidenced by a claim of privilege, signed and verified by affidavit of an officer or agent of the association, and shall be filed for registry in the mortgage records in the parish in which the condominium is located not more than ninety days after the date on which the assessment becomes delinquent. The claim of privilege shall include a description of the condominium parcel, the name of its record owner, the amount of delinquent assessment, and the date on which said assessment become delinquent. The association shall, at least seven days prior to the filing for registry of the privilege, serve upon the delinquent unit owner a sworn detailed statement of its claim for the delinquent assessment, which service shall be effected by personal service, or registered or certified mail.
- (b) A claim of privilege recorded, as set forth in Subsection A of this Section, shall preserve the privilege against the condominium parcel for a period of one year from the date of recordation. The effect of recordation shall cease and the privilege preserved by this recordation shall preempt unless a notice of filing of suit, giving the name of the court, the title and number of the proceedings and the

and the date of filing a description of the condominium parcel and the name of the unit owner, on said claim is recorded within one year from the date of the recordation of the inscription of the said claim. Such note of filing suit shall preserve the privilege until the court in which the suit is filed shall order the cancellation of the inscription of the said claim and the notice of filing of suit on said claim or until the claimant authorized the clerk of court or recorder of mortgages to cancel the said inscriptions.

C. A privilege under this Section is superior to all other liens and encumbrances on a unit except (1) privileges, mortgages, and encumbrances recorded before the recordation of the declaration (2) privileges, mortgages, and encumbrances on the unit recorded before the recordation of the privilege as provided in Subsection B of this Section (3) immovable property taxes, and (4) governmental assessments in which the unit is specifically described.

In connection with the privilege provided by L.R.S. 9:1123.15, as aforesaid, all such liens on Autumn Woods Condominiums shall bear interest at the rate of Ten (10%) per cent per annum and reasonable attorney fees provided therein shall be no less than twenty-five (25%) per cent of the amount of the lien.

XV.

As appears from the plan of ownership described above and the Proclamation in paragraph number I establishing a Condominium Regime, appearer does hereby take full advantage of the provisions of Louisiana Revised Statute Title 9, Section 1121.101 through 1148, whereby all units as shown in the plan shall be conveyed and recorded as individual properties capable of independent use. Each unit owner shall have an exclusive and particular ownership right over his respective unit, and in addition, shall have the above specified undivided ownership interest in the common elements of said condominium.

XVI.

Autumn Woods Townhouses, a Condominium, shall be managed by Autumn Woods Homeowners Association, Inc., a Louisiana non-profit corporation domiciled in the Parish of Lafayette, Louisiana said Corporation to act and at all times serve in the capacity as "Association of Unit Owners," or "Association" as defined herein and referred to in the Louisiana Condominium Act. Autumn Woods Homeowners Association, Inc. shall be owned exclusively by unit owners, each owner's interest therein being an undivided one-thirty-fourth (1/34) of the total value of the Condominium property as a whole. Autumn Woods Homeowner's Association, Inc., shall enjoy all of the rights, privileges, duties, powers, immunities and disabilities applicable to the "association" as provided for in the Louisiana Condominium Act, this Condominium Declaration and the Bylaws of the Autumn Woods Townhouses, a Condominium.

XVII.

The administration of Autumn Woods Townhouses shall be in accordance with the Louisiana Condominium Act, the provision of this declaration and with the provisions of the Bylaws of Autumn Woods Townhouses, which are made a part of this instrument and are attached hereto as Exhibit "C" and shall be subject to such rules and regulations as may be established by the procedures outlined in the said Bylaws which are not inconsistent with this Declaration and the Louisiana Condominium Act.

XVIII.

This condominium declaration of Autumn Woods Townhouses, a Condominium, may be amended by notarial act duly filed for registry in the Conveyance Records of the Parish of Lafayette, Louisiana, and any said amendment shall be effective as to all persons from the moment of said recordation. Any amendment to the condominium declaration of Autumn Woods Townhouses shall bear the signature evidencing the affirmative consent of not less than seventy-five (75%) percent of the persons owning a unit or an interest in a unit in Autumn Woods Townhouses. Ownership shall be evidenced only by act translatif of title in accordance with Louisiana Law and duly

XIX.

The owner of each unit shall comply with the provisions of this declaration, the bylaws, and rules, and regulations promulgated by the association, and failure to comply with any such provisions, rules or regulations shall be grounds for an action to recover sums due for damages, and for injunctive relief.

XX.

The association shall prepare a budget for the expense of administration, maintenance, insurance, and the reserve provided for in the bylaws in accordance with R. S. 9:1123.106 and require owners to make monthly contributions, pro-rata, based upon a one thirty-fourth ($1/34$) interest per unit owned, toward said necessary common expenses. All funds raised and expenses in this matter shall be held in a separate account and used solely for this stated purpose.

XXI.

The association shall obtain insurance for the condominium property against property loss or damage by fire and other casualties and hazards in an amount not less than the appraised replacement cost of the condominium property and shall give written notice of the insurance, including details as to the coverage thereof, and of any change therein or termination thereof, to each unit owner. An appraisal of the condominium property to determine the minimum insurance coverage required by this section shall be performed initially and at least once every three years. Each unit owner and his mortgagee, if any, shall be a beneficiary even though not named. The association shall have the right to charge the costs of the insurance to the individual unit owners on the basis on the comparative replacements or comparative risks insured of the individual units.

XXII.

In case of fire or any other disaster the insurance indemnity shall, except as provided in the next succeeding paragraph of this section, be applied to the reconstruction of damaged property in such a manner as not to prejudice any duly recorded mortgage of any of the units. Should it be proper to proceed with the reconstruction, the association shall take charge and handle same pursuant to the authority granted by the Louisiana Condominium Act, this Declaration and the duly promulgated Autumn Woods Townhouses.

Reconstruction shall not be compulsory where the costs of reconstruction amounts to more than two thirds of the total replacement costs of all of the buildings and improvements situated on said real property or if such reconstruction shall be contrary to law. In such case, and unless otherwise unanimously agreed upon by the record owners of all units, or otherwise provided for in the insuring agreements, the indemnity shall be delivered pro-rata to the record owners of all units in accordance with the ratio set forth in Paragraph VI herein and their respective duly recorded mortgages. Each owner of a unit shall thereafter discharge the duties and obligations owed to his respective mortgagees in accordance with law. Should the owners of said units elect to not reconstruct on said property, they shall be legally obligated under the terms of this Declaration to unanimously agree and proceed, without delay, to withdraw all property of Autumn Woods Townhouses from the Condominium regime in accordance with Louisiana Revised Statutes, Title 9, Section 1122.112, after which they shall be co-owners, in indivision, of the entire property and improvements in accordance with the ratio or percentage set forth in Paragraph VI herein.

XXIII

The following clauses are incorporated herein relative to first mortgagee's of condominium units of Autumn Woods Townhouses.

- (a) Association must provide any Mortgagee with a certified copy of suitable agreement of the following nature:
- First Mortgage of the Autumn Woods Townhouse Units may jointly or singly, pay taxes and/or other charges which are in default and which may or have become a charge against any condominium property and may pay overdue premiums or hazard insurance coverage on the lapse of a policy, for such common property. First Mortgagee making such payments shall be owed immediate reimbursement therefor from the AUTUMN WOODS HOMEOWNERS ASSOCIATION, INC.
- (b) It is the intent of the Association that nothing in this document shall be construed as giving any priority over a first mortgage on any individual condominium or to the common areas herein.
- (c) A minimum of twenty (20%) percent of the Annual Assessment shall be set aside as a reserve for future painting of exteriors and modification of plantings.
- (d) The items noted in this section are to satisfy possible Mortgage requirements and will require a two-thirds (2/3) written approval by Owners of the Association.
- (1) By Act or Omission to abandon, partition, subdivide, encumber, sell or transfer common property (excepting as may be necessary to public agencies after the original easements).
 - (2) Change the method of determining the obligations, assessments, dues or other charges which may be levied against an unit owner.
 - (3) By Act or omission change, waive or abandon any scheme or enforcement of regulations pertaining to the architectural design or exterior appearance of the units, the maintenance of the common property, walks, fences, and driveways, or the upkeep of lawns and plantings.

- (d) fail to maintain fire and extended coverage on insurable common property on a one hundred (100%) percent insurable value at current replacement cost basis.
- (e) Use of hazard insurance proceeds for losses to any common property for other than the repair or reconstruction of such common property.

XXIV.

The following restrictive covenants and conditions are hereby imposed upon the condominium property:

- (a) No part of the property shall be used for other than housing and relating common purposes for which the property was designed. Each unit shall be used as a residence for a single family or such other uses permitted by this declaration and for no other purpose.
- (b) There shall be no obstruction of the common area nor shall anything be stored in the common area without the prior consent of the Board of Directors of the Association except as herein expressly provided.
- (c) Nothing shall be done or kept upon unit or in any improvements thereon or in the common areas which will increase the rate of insurance applicable for residential use, without the prior written consent of the Board of Directors of the Association. No owner shall permit anything to be done upon his unit or in the improvements thereon or in the common area which will result in cancellation of insurance upon any of the improvements on the properties, or which would be in violation of any law. No waste will be permitted in the common area.
- (d) The association shall provide suitable containers for garbage, refuse, rubbish and cuttings and no garbage, refuse, rubbish or cuttings shall be deposited anywhere on the properties other than in said containers.

- (e) No clothes lines, drying yards, service yards, wood piles or storage areas shall be so located as to be visible to a street, road or common area.
- (f) No animals or poultry shall be kept on any residential lot except ordinary household pets belonging to the household.
- (g) Boats, trailers, campers, travel trailers, tents, trucks, pickups or commercial vehicles shall be regulated by the Architectural Control Committee; this restriction shall not restrict trucks or commercial vehicles making deliveries to or in the area, nor shall this restriction limit trucks or commercial vehicles within the area which are necessary for the construction of improvements or maintenance of the improvements or common areas.
- (h) No noxious or offensive activities shall be carried on any lot or in the common areas, nor shall anything be done therein, either willfully or negligently, which may be or become an annoyance or nuisance to the other owners or occupants.
- (i) Nothing shall be done upon any lot or in, on or to the common areas which will impair the structural integrity of any building or which would structurally change the buildings except as is otherwise provided herein.
- (j) Only signs authorized by the Association advertising the sale or rental of a lot shall be allowed.
- (k) There is created in favor of the Autumn Woods Homeowners Association, Inc. an easement for the maintenance, repair and use, over, under and through the respective units and improvements thereon for the utilities serving multiple units or improvements.
- (l) No motorized vehicles shall be allowed on the sidewalks of the properties.

XXV.

Ownership of each unit shall entitle the owner or owners thereof to the use of not more than two (2) automobile parking spaces, which shall be as near and convenient to said unit as reasonably possible, together with the right of ingress and egress in and upon said parking area. The Association may permanently assign one (1) vehicle parking space for each dwelling, as designated by various colored curbside paint and unit numbers.

THUS DONE, READ AND PASSED at my office in Lafayette, Louisiana, Parish of Lafayette, in the presence of me, Notary, and the undersigned competent witnesses who having signed with the presence of the parties and me, Notary, on the date first above written.

WITNESSES:

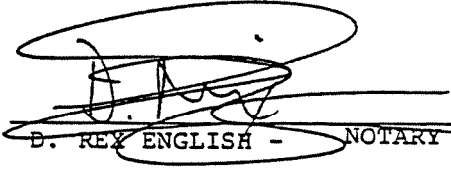
KECO-AUTUMN WOODS VENTURE

LENA GUIDRY

BY:

J. Eustin Corrigan, individually
and on behalf of Burt H. Keenan

GEORGI MEYERS


D. REX ENGLISH - NOTARY PUBLIC

"EXHIBIT B"

BYLAWS OF AUTUMN WOODS TOWNHOUSES, A CONDOMINIUM

ARTICLE I. ADOPTION OF BYLAWS

Section 1. Adoption. Autumn Woods Townhouses, a condominium submits these bylaws in compliance with the Louisiana Condominium Act and the Declaration of Condominium.

Section 2. Bylaw Applicability. The provisions of these bylaws are applicable to the entirety of the condominium property.

Section 3. Personal Application. All present or future owners, tenants, or their employees, or any other persons that might use the facilities of Autumn Woods Townhouses in any manner, are subject to the regulations set forth in these Bylaws and to the rules and regulations established and promulgated by the association of unit owners pursuant to these bylaws and the Condominium Declaration.

The mere acquisition or rental of any of the units of Autumn Woods Townhouses or the mere act of occupancy of any of said unit will signify that these Bylaws and the provision of these Regulatory Agreements are accepted, ratified and will be complied with.

ARTICLE II. ADMINISTRATION

Section 1. Association of Unit Owners. Autumn Woods Homeowner's Association, Inc., a Louisiana non-profit corporation domiciled in the Parish of Lafayette shall serve at all times in the capacity as the "Association of Unit Owners", or "association". Autumn Woods Homeowner's Association, Inc., shall be owned exclusively by unit owners, each owner's interest therein being based on an undivided one thirty-fourth (1/34th) interest per unit. Autumn Woods Homeowner's Association, Inc., shall have thirty-four (34) shareholders, each share of which shall represent the ownership of one unit.

Section 2. Place of Meetings. Meeting of the association shall be held at Autumn Woods Townhouses, or such other suitable place convenient to the unit owners as may be designated by the said association.

Section 3. Annual Meetings. The first annual meeting of the association shall be held on the first Saturday in April, 1981, at 7:00 p.m. Thereafter, the semi-annual meetings of the association of unit owners shall be held on the first Saturday of each succeeding October, and the first Saturday of each succeeding April, thereafter.

Section 4. Special Meetings. It shall be the duty of the President to call a special meeting of the association upon a petition signed by at least one-fourth (1/4) of the owners having been presented to the Secretary-Treasurer. The notice of any special meeting shall state the time and place of such meeting and the purpose thereof. No business shall be transacted at a special meeting except as stated in the notice unless by consent of two-thirds (2/3) of directors present, either in person or by proxy.

Section 5. Notice of Meetings. It shall be the duty of the Secretary-Treasurer to mail or personally deliver a notice of each semi-annual or special meeting, stating the purpose thereof as well as the time and place where it is to be held to each owner of record, at least seven, but not more than 14 days prior in this section shall be considered notice served.

Section 6. Adjourned Meetings. If any meeting of the association cannot be held because a quorum has not attended, the owners who are present, either in person or by proxy, may adjourn the meeting to a time not less than forty-eight (48) hours from the time the original meeting was called.

Section 7. Order of Business. The order of business at all regular semi-annual meetings of the association of unit owners shall be as follows:

- (a) Roll Call.
- (b) Proof of notice of meeting or waiver of notice.
- (c) Reading of minutes of preceding meeting.
- (d) Reports of officers.
- (e) Report of committees.
- (f) Election of officers.
- (g) Unfinished business.
- (h) New Business.

The order of business at special meetings shall be in

Section 8. Duties. The association of unit owners, Autumn Woods Homeowner's Association, Inc., shall have the powers and duties necessary for the administration of the affairs of Autumn Woods Townhouses, and may do all such acts and things as are not by law or by these bylaws prohibited.

In compliance with the obligations imposed upon the association by the Louisiana Condominium Act, the Condominium Declaration and these Bylaws, the said association shall be responsible for the following:

- (a) Care, upkeep, and surveillance of the condominium property, and the common elements and facilities and the limited common elements and facilities.
- (b) Collection of monthly assessments from the owners.
- (c) Designation and dismissal of the personnel necessary for the maintenance and operation of the condominium property and the common elements and facilities.
- (d) The association of unit owners shall keep a book with a detailed account, in chronological order, of the receipt and expenditures affecting Autumn Woods Townhouses and its administration and specifying the maintenance and repair expenses of the common elements and any other vouchers accrediting the entries made thereupon shall be available for examination by all the unit owners at convenient hours on working days that shall be set and announced for general knowledge.
- (e) The establishment of reserves to provide for maintenance, improvements, replacements, working capital, bad debts, obsolescence and other appropriate purposes, all as is required by R.S. 9:1123.106.
- (f) As provided for in Article XII of the condominium declaration, the association shall have a privilege on a condominium parcel for unpaid sums for its share of common expenses and limited commons expenses, together

with legal interest thereon and reasonable attorney's fees incurred incidental to collecting said sums. It shall be the policy of the association to make demand upon the unit owner for an unpaid portion of the said assessed common expenses and limited common expenses and thereafter proceed by lien and litigation if said amounts are not promptly paid.

- (g) Prepare and submit at the regular semi-annual meetings a budget for its consideration and approval, which must be furnished to each unit owner thirty (30) days prior to said meetings.
- (h) Maintain fire and extended coverage, and other peril insurance, upon the premises in no less amount than the appraised cost of replacement of the premises. The property shall be appraised for insurance purposes at the time of recording the condominium declaration and at least every three years thereafter.

Section 9. Management Agent. The association of unit owners may employ a management agent at a compensation established by the said association to perform such duties and services as the association shall authorize, including but not limited to the duties listed in Section 8 of this Article.

Section 10. Fidelity Bonds. The association of unit owners shall require all officers and employees of the corporation handling or responsible for funds of the corporation to furnish adequate fidelity bonds. The premiums on such bonds shall be paid by the association of unit owners.

ARTICLE III. VOTING, MAJORITY OF

OWNERS, QUORUM, PROXIES

Section 1. Voting. Voting shall be on a per share basis with each unit owner (i.e., member) being entitled to one vote per share. (The term "shareholder" shall mean "member" herein).

Section 2. Majority of Owners. An affirmative vote of a majority of owners shall be required on all matters unless otherwise required by the Louisiana Condominium Act, the condominium declaration, or these Bylaws.

Section 3. Proxies. Votes may be cast in person or by proxy. Proxies must be filed with the Secretary of the Association before the ~~appointed time of each meeting, on a form to be provided by the~~ association.

Section 4. Quorum. The presence at the meeting of members entitled to cast, or of proxies entitled to cast, two-thirds (2/3) of the votes of membership shall constitute a quorum for any action except as otherwise provided in the Articles of Incorporation, the Declaration, or these by-laws. If, however, such quorum shall not be present or represented at any meeting, the members entitled to vote thereat shall have power to adjourn the meeting from time to time without notice other than announcement at the meeting, until a quorum as aforesaid shall be present or be represented.

ARTICLE IV.

BOARD OF DIRECTORS: SELECTION: TERM OF OFFICE

Section 1. Number. The affairs of this Association shall be managed by a Board of Directors of not less than three (3) nor more than nine (9) members who need not be members of the Association.

Section 2. Term of Office. At the first April semi-annual meeting the members shall elect three directors for a term of one year, three directors of a term of two years and three directors for a term of three years; and at each April semi-annual meeting thereafter the members shall elect three directors for a term of three years.

Section 2. Removal. ~~Any director may be removed from the~~
Board, ~~with or without cause~~, by a majority vote of the members
of the Association. In the event of death, resignation or removal
of a director, his successor shall be selected by the remaining
members of the Board and shall serve for the unexpired term of
his predecessor.

Section 4. Compensation. ~~No director shall receive compensation f~~
any services he may render to the Association. However, any director
may be reimbursed for his actual expenses incurred in the performance
of his duties.

Section 5. Action Taken Without a Meeting. The directors shall
have the right to take any action in the absence of a meeting which
they could take at a meeting by obtaining the written approval
of all the directors. Any action so approved shall have the same
effect as though taken at a meeting of directors, except that such
action shall be construed as an "emergency" and its outcome be
confirmed and approved at the next valid meeting.

ARTICLE V.

NONMINATION AND ELECTION OF DIRECTORS

Section 1. Nomination. Nomination for election of the Board
of Directors shall be made by a Nominating Committee. Nominations
may also be made from the floor at the annual meeting. The Nominating
Committee shall consist of a Chairman, who shall be a member of the
Board of Directors, and two or more members of the Association.
The Nominating Committee shall be appointed by the Board of Directors
prior to each April semi-annual meeting of the members, to serve from
the close of such April semi-annual meeting until the close of the next
annual meeting and such appointment shall be announced at each
April semi-annual meeting. The Nominating Committee shall make as
many nominations for election to the Board of Directors as it shall
in its discretion determine, but not less than the number of
vacancies that are to be filled. Such nominations may be made from
among members or non-members.

Section 2. Election. Election to the Board of Directors shall be by secret written ballot. At such election the members or their proxies may cast, in respect to each vacancy, as many votes as they are entitled to exercise under the provision of the Declaration. The persons receiving the largest number of votes shall be elected. Cumulative voting is not permitted.

ARTICLE VI

MEETINGS OF DIRECTORS

Section 1. Regular Meetings. Regular meetings of the Board of Directors shall be held monthly without notice, at such place and hour as may be fixed from time to time by resolution of the Board. Should said meeting fall upon a legal holiday, then that meeting shall be held at the same time on the next day which is not a legal holiday.

Section 2. Special Meetings. Special meetings of the Board of Directors shall be held when called by the president of the Association, or by any two directors, after not less than three days notice to each director.

Section 3. Quorum. Two-thirds (2/3) of the members shall constitute a quorum for the transaction of business. Every act or decision done or made by a majority of the directors present at a duly held meeting at which quorum is present shall be regarded as the act of the Board, and shall have written approval.

ARTICLE VII.

POWERS AND DUTIES OF THE BOARD OF DIRECTORS

Section 1. Powers. The Board of Directors shall have power to:

(a) adopt and publish rules and regulations governing the use of the common area and facilities, and the personal conduct of the members and their guests thereon, and to establish penalties for the infraction thereof;

(b) suspend the voting rights and right to use of the common or recreational facilities of a member during any period in which such member shall be in default in the payment of any assessment levied by the Association. Such rights may also be suspended after notice and hearing, for a period not to exceed sixty (60) days for infraction of published rules and regulations;

(c) exercise for the Association all powers, duties and authority vested in or delegated to this Association and not reserved to the membership by other provisions of these By-laws, the Articles of Incorporation, or the Declaration;

(d) declare the office of a member of the Board of Directors to be vacant in the event such member shall be absent from three consecutive regular meetings of the Board of Directors; and

(e) employ a manager, an independant contractor, or such other employees as they deem necessary, and to prescribe their duties.

Section 2. Duties. It shall be the duty of the Board of Directors to:

(a) cause to be kept a complete record of all its acts and corporate affairs and to present a statement thereof to the members at the semi-annual meetings of the members, or at any special meeting where such statement is requested in writing by one-fourth (1/4) of the members who are entitled to vote:

(b) supervise all officers, agents and employees of this Association, and to see that their duties are properly performed;

(c) as more fully provided in the Declaration, to:

1. Fix the amount of the annual assessment against each unit at least thirty (30) days in advance of each annual assessment period;

2. Send written notice of each assessment to every owner subject thereto at least thirty (30) days in advance of each annual assessment period; and

(d) issue, or to cause an appropriate officer to issue, upon demand by any person, a certificate setting forth whether or not any assessment has been paid. A reasonable charge may be made by the Board for the issuance of these certificates. If a certificate states an assessment has been paid, such certificate shall be conclusive evidence of such payment;

(e) procure and maintain adequate liability and hazard insurance on property owned by the Association;

(f) cause all officers or employees having fiscal responsibility to be bonded, as it may deem appropriate.

(g) cause necessary maintenance to be undertaken.

ARTICLE VII. OFFICERS

Section 1. Designation. The principal officers of the association Autumn Woods Homeowner's Association, Inc. shall be a President, Vice-President, Secretary and Treasurer. Said officers shall be elected by and from the owners of the units in said condominium or from any person who has the Power of Attorney to represent a unit and also resides in said condominium.

Section 2. Removal of Officers. Upon an affirmative vote of a "majority of owners", any officer may be removed, either with or without cause, and his successor elected at any regular meeting of the association, or at any special meeting called for such purpose.

Section 3. Election of Officers. The officers of the association shall be elected semi-annually or annually and shall hold office at the pleasure of the said association.

Section 4. President. The President shall be the chief executive officer of the association of unit owners. He shall preside at all meetings of the association. He shall have all of the general powers and duties which are usually vested in the office of the president of an association of unit owners, including but not limited to the power to appoint committees from among the owners from time to time as he may in his discretion decide is appropriate to assist in the conduct of the affairs of the said association.

Section 5. Vice-President. The Vice President shall take the place of the President and perform his duties whenever the President shall be absent or unable to act. If neither the President nor the Vice-President is able to act, the said association shall appoint some other member of the association to do so on an interim basis. The Vice-President shall also perform such other duties as shall from time to time be imposed upon him by the association.

Section 6. Secretary. The Secretary shall keep the minutes of all meetings of the association; he shall have charge of such books and papers as are incident to the office of Secretary.

Section 7. Treasurer. The Treasurer shall be responsible for keeping full and accurate account of all receipts and disbursements in books belonging to the association. He shall be responsible for the deposit of all monies and other valuable effects in the name, and to the credit, of the association of unit owners in such depository as may from time to time be designated by the said association.

ARTICLE VIII.

OBLIGATIONS OF THE OWNER OF UNITS

Section 1. Assessments. All owner of units in Autumn Woods Townhouses shall be obligated to pay monthly assessments imposed by the association of unit owners to meet all common expenses, which shall include a liability insurance policy premium and an insurance premium for a policy to cover repair and reconstruction work in case of hurricane, fire, earthquake or other hazard. The assessments shall be made pro-rata according to the number of units owned, as stipulated in the condominium declaration. Such assessments shall also be used for the establishment of a reserve fund provided for herein by Article II, Section 8 (E). Assessments based upon the semi-annual budget shall be pro-rated and paid monthly. Special assessments may be made and shall be paid in accordance with the resolution adopting the special assessment. Payments of all assessments shall be made promptly in accordance with the adopting resolution.

Section 2. Maintenance and Repair

- a. Every unit owner must perform promptly all maintenance and repair work within his own unit, which if omitted would affect the condominium property in its entirety or in a part belonging to the owners, said unit-owner being expressly responsible for the damages and liabilities that his failure to do so may engender.
- b. All the repairs, maintenance, and replacement of internal installation of a unit such as water, light, gas, power sewer, telephones, air condition, sanitary installation, doors, windows, lamps and all other accessories belonging to the unit area, and air-condition equipment serving the unit, shall be at the owner's expense.

Section 3. Use of Condominium Units - Administrative
Rules and Regulations - Internal Changes

- a. All units in Autumn Woods Townhouses shall be used in such a manner as to not violate ordinances of the City of Lafayette or laws of the State of Louisiana and United States of America.
- b. Administrative rules and regulations concerning the details of operation and use of the condominium property shall be adopted and/or amended from time to time as deemed necessary by a vote of a "Majority of Owners" as set forth in Article III, Section 2 of the Bylaws.
- c. An owner shall not make any modification whatsoever in the interior or exterior of his unit or any installations located therein without previously notifying the association of unit owners in writing or through the Management Agent, if any, or through the President of said association, if no management is employed. The association of unit owners shall have the obligation to answer within ten (10) days and failure to do so within the stipulated time shall mean that there is no objection to the propped modification or alteration.

Section 4. Use of Common Areas Facilities.

An owner shall not place or cause to be placed in the drive, walks and other project areas and facilities of a similar nature any trash, furniture, packages or objects of any kind. Such areas shall be used for no other purpose than for normal transit through them, except as may be provided otherwise by the association.

Section 5. Right of Entry. All owners of units shall grant the right of entry to the management agent or to any other person authorized by the association of unit owners in case of an ~~emergency~~ originating in or threatening any one of the units, whether the owner be present at the time or not.

1/10/00 ?

Section 6. Rules of Conduct.

- (a) No resident of the Condominium property shall post any advertisements, or posters of any kind in or on the condominium property except as authorized by the association of unit owners.
- (b) It is prohibited to accumulate garbage or trash within the parking lots or within the patio area, except as authorized by the said association.
- (c) No unit owner, resident or lessee shall install wiring for electrical or telephone installation, television antennae machines or air condition units, etc., on the exterior of the project, or that protrude through the walls or the roof of the project, except as authorized by the association of unit owners.
- (d) No unit owner, resident or lessee shall install plumbing piping, etc., on the exterior or interior of the project except as authorized in writing by the Autumn Woods Homeowner's Association, Inc.

ARTICLE VI. AMENDMENTS TO BYLAWS

These bylaws may be amended by the association of unit owners in a duly constituted meeting for such purpose and no amendment shall take effect unless approved by unit owners representing at least sixty-six percent of the total voting stock. No such modification shall be operative until it is embodied in a recorded instrument which shall be recorded in the same office and in the same manner as is the condominium declaration and these original Bylaws.

ARTICLE IX. ~~ARBITRATION COMMITTEE~~

The association shall appoint an arbitration ~~committee~~ consisting of between one and ten members, not necessarily unit owners, and disputes among owners arising from the ~~administration~~ of the condominium property shall be submitted thereto in an effort to promote neighborly consideration, good will and peace and tranquility among the occupants of Autumn Woods Townhouses.

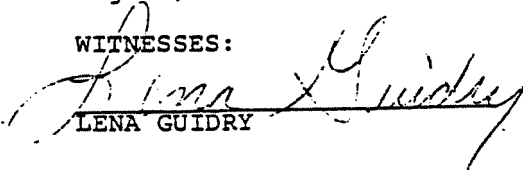
ARTICLE X. COMPLIANCE

These bylaws are set forth to comply with the requirements of the Louisiana Condominium Act (R.S. 9:1121.101 et seq.) and shall be considered an appendage to the condominium declaration filed prior hereto in accordance with said Act. In case any of these Bylaws conflict with the provision of said statutes, it is hereby agreed and accepted that the provisions of the statutes will apply.

Promulgated at Lafayette, Louisiana, this 18th day of August, 1980.

WITNESSES:

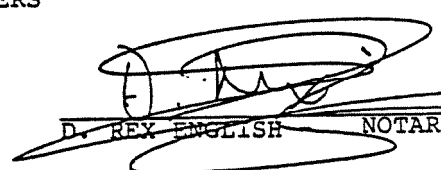
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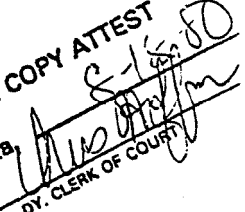

LENA GUIDRY

BY:

J. EUSTIS CORRIGAN


GEORGI MEYERS


D. REX ENGLISH NOTARY PUBLIC

A TRUE COPY ATTEST
Lafayette, La.  8-18-80
DY. CLERK OF COURT